

ADVICE TO INTERNATIONAL PASSENGERS ON LIMITATIONS OF LIABILITY

PASSENGERS EMBARKING UPON A JOURNEY INVOLVING AN ULTIMATE DESTINATION OR A STOP IN A COUNTRY OTHER THAN THE COUNTRY OF DEPARTURE ARE ADVISED THAT THE PROVISIONS OF AN INTERNATIONAL TREATY (THE WARSAW CONVENTION, THE 1999 MONTREAL CONVENTION, OR OTHER TREATY), AS WELL AS A CARRIER'S OWN CONTRACT OF CARRIAGE OR TARIFF PROVISIONS, MAY BE APPLICABLE TO THEIR ENTIRE JOURNEY, INCLUDING ANY PORTION ENTIRELY WITHIN THE COUNTRIES OF DEPARTURE AND DESTINATION. THE APPLICABLE TREATY GOVERNS AND MAY LIMIT THE LIABILITY OF CARRIERS TO PASSENGERS FOR DEATH OR PERSONAL INJURY, DESTRUCTION OR LOSS OF, OR DAMAGE TO, BAGGAGE, AND FOR DELAY OF PASSENGERS AND BAGGAGE.

ADDITIONAL PROTECTION CAN USUALLY BE OBTAINED BY PURCHASING INSURANCE FROM A PRIVATE COMPANY. SUCH INSURANCE IS NOT AFFECTED BY ANY LIMITATION OF THE CARRIER'S LIABILITY UNDER AN INTERNATIONAL TREATY. FOR FURTHER INFORMATION PLEASE CONSULT YOUR AIRLINE OR INSURANCE COMPANY REPRESENTATIVE.

NOTICE OF INCORPORATED TERMS

TRANSPORTATION IS SUBJECT TO THE TERMS AND CONDITIONS OF AVIANCA'S CONTRACT OF CARRIAGE, WHICH ARE INCORPORATED HEREIN BY REFERENCE. INCORPORATED TERMS MAY INCLUDE, BUT ARE NOT LIMITED TO: (I) LIMITS ON THE CARRIER'S LIABILITY FOR PERSONAL INJURY OR DEATH OF PASSENGERS (SUBJECT TO PROVISIONS UNDER APPLICABLE INTERNATIONAL TREATY) AND FOR LOSS, DAMAGE, OR DELAY OF GOODS AND BAGGAGE, INCLUDING FRAGILE OR PERISHABLE GOODS; (II) CLAIM RESTRICTIONS, INCLUDING TIME PERIODS WITHIN WHICH PASSENGERS MUST FILE A CLAIM OR BRING AN ACTION AGAINST THE CARRIER FOR ITS ACTS OR OMISSIONS OR THOSE OF ITS AGENTS; (III) RULES ABOUT RE-CONFIRMATIONS OR RESERVATIONS, CHECK-IN TIMES, AND REFUSAL TO CARRY; AND (IV) RIGHTS OF THE CARRIER AND LIMITATIONS CONCERNING DELAY OR FAILURE TO PERFORM SERVICE, INCLUDING SCHEDULE CHANGES, SUBSTITUTION OF ALTERNATE CARRIER OR AIRCRAFT, AND REROUTING. PASSENGERS MAY OBTAIN A CONCISE AND IMMEDIATE EXPLANATION OF THE TERMS SHOWN IN THE FOREGOING CLAUSES (I) THROUGH (IV) FROM ANY OF AVIANCA'S U.S. TICKET SELLING LOCATIONS (I.E., U.S. AIRPORTS OR CITY TICKET OFFICES). THE FULL TEXT OF AVIANCA'S CONTRACT OF CARRIAGE IS AVAILABLE AT AVIANCA.COM OR YOU MAY REQUEST A COPY AT ANY AVIANCA U.S. TICKET SELLING LOCATION. PASSENGERS ALSO HAVE THE RIGHT, UPON REQUEST AT ANY AVIANCA U.S. TICKET SELLING LOCATION, TO RECEIVE FREE OF CHARGE BY MAIL OR OTHER DELIVERY SERVICE THE FULL TEXT OF AVIANCA'S CONTRACT OF CARRIAGE.

NOTICE – OVERBOOKING OF FLIGHTS

AIRLINE FLIGHTS MAY BE OVERBOOKED, AND THERE IS A SLIGHT CHANCE THAT A SEAT WILL NOT BE AVAILABLE ON A FLIGHT FOR WHICH A PERSON HAS A CONFIRMED RESERVATION. IF THE FLIGHT IS OVERBOOKED, NO ONE WILL BE DENIED A SEAT UNTIL AIRLINE PERSONNEL FIRST ASK FOR VOLUNTEERS WILLING TO GIVE UP THEIR RESERVATION IN EXCHANGE FOR COMPENSATION OF THE AIRLINE'S CHOOSING. IF THERE ARE NOT ENOUGH VOLUNTEERS, THE AIRLINE WILL DENY BOARDING TO OTHER PERSONS IN ACCORDANCE WITH ITS PARTICULAR BOARDING PRIORITY. WITH FEW EXCEPTIONS, INCLUDING FAILURE TO COMPLY WITH THE CARRIER'S CHECK-IN DEADLINE 60 MINUTES BEFORE, PERSONS DENIED BOARDING INVOLUNTARILY ARE ENTITLED TO COMPENSATION. *THE COMPLETE RULES FOR THE PAYMENT OF COMPENSATION AND EACH AIRLINE'S BOARDING PRIORITIES ARE AVAILABLE AT ALL AIRPORT TICKET COUNTERS AND BOARDING LOCATIONS. SOME AIRLINES DO NOT APPLY THESE CONSUMER PROTECTIONS TO TRAVEL FROM SOME FOREIGN COUNTRIES, ALTHOUGH OTHER CONSUMER PROTECTIONS MAY BE AVAILABLE. CHECK WITH YOUR AIRLINE OR YOUR TRAVEL AGENT.*

HAZARDOUS MATERIALS NOTIFICATIONS

PLEASE NOTE THAT U.S. FEDERAL LAW FORBIDS THE CARRIAGE OF HAZARDOUS MATERIALS ABOARD AIRCRAFT IN YOUR LUGGAGE OR ON YOUR PERSON. A VIOLATION CAN RESULT IN FIVE YEARS' IMPRISONMENT AND PENALTIES OF \$250,000 OR MORE (49 U.S.C. 5124). HAZARDOUS MATERIALS INCLUDE EXPLOSIVES, COMPRESSED GASES, FLAMMABLE LIQUIDS AND SOLIDS, OXIDIZERS, POISONS, CORROSIVES AND RADIOACTIVE MATERIALS. EXAMPLES: PAINTS, LIGHTER FLUID, FIREWORKS, TEAR GASES, OXYGEN BOTTLES, AND RADIO-PHARMACEUTICALS. THERE ARE SPECIAL EXCEPTIONS FOR SMALL QUANTITIES (UP TO 70 OUNCES TOTAL) OF MEDICINAL AND TOILET ARTICLES CARRIED IN YOUR LUGGAGE AND CERTAIN SMOKING MATERIALS CARRIED ON YOUR PERSON. LITHIUM ION BATTERIES CANNOT BE INCLUDED IN CHECKED LUGGAGE. FOR FURTHER INFORMATION CONTACT YOUR AIRLINE REPRESENTATIVE OR VISIT [HTTPS://WWW.FAA.GOV/ABOUT/INITIATIVES/HAZMAT SAFETY](https://www.faa.gov/about/initiatives/HAZMAT%20SAFETY)

SOME COUNTRIES MAY REQUIRE AIRCRAFT CABIN INSECTICIDE TREATMENT FOR IN-BOUND FOREIGN FLIGHTS. A LIST OF SUCH COUNTRIES IS AVAILABLE AT [HTTPS://WWW.TRANSPORTATION.GOV/AIRCONSUMER/SPRAY](https://www.transportation.gov/AIRCONSUMER/SPRAY)